

24STCV27134 24STCV27134

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-07-29

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C515%2C07%2F29%2F2026

Source SHA-256: 734b42869c9caf0171eb0501e7d6c65afcbf37aa6d33c010029dfa9f435c3c4b

Case Number: 24STCV27134 Hearing Date: July 29, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Demurrer - without Motion to Strike

The Demurrer to the First Amended Complaint filed by Bernards Builders, Inc. is sustained with leave to amend.

BACKGROUND

Plaintiff Cooper Hickox (Plaintiff) filed this action against Defendants Edgar Ochoa (Ochoa), Rescore Hollywood, LLC (Rescore), and the City of Los Angeles (the City), alleging that Ochoa negligently operated his vehicle and collided with Plaintiff on his motorcycle, and that Rescore and the City negligently owned, controlled, maintained, or failed to remedy dangerous conditions on or near the premises (The Rise Hollywood) and the adjacent roadway. The collision occurred on October 12, 2023, and Plaintiff filed the original Complaint on October 16, 2024.

Plaintiff filed the operative First Amended Complaint (FAC) on April 28, 2026. The causes of action in the FAC are (1) Negligence against Ochoa; (2) Negligence/Premises Liability against Rescore; (3) Negligence against Bernards; and (4) Negligence/Premises Liability against the City.

Bernards demurs to the Third Cause of Action and requests judicial notice of two documents. Plaintiff filed an Opposition, and Bernards filed a Reply.

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-721.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or the facts alleged.” [Citation.]” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) As such, courts assume the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) However, it does not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

REQUEST FOR JUDICIAL NOTICE

Bernards requests that the Court take judicial notice of the following documents:

1. Exhibit A, an excerpt of the certified transcript of the deposition of Edward Miller taken in Los Angeles Superior Court, Case No. 22STCV00763.
2. Exhibit B, a Certificate of Occupancy issued by the City of Los Angeles for The Rise Hollywood project.

A court ruling on a demurrer may consider matters that are judicially noticeable, but taking notice of a document is not the same as accepting the truth of its contents or adopting a proposed interpretation of it. (Joslin v. H.A.S. Ins. Brokerage (1986) 184 Cal.App.3d 369, 374.)

The hearing on a demurrer may not be turned into a contested evidentiary hearing through the device of noticing documents whose truth or proper interpretation is disputable. (Id. at pp. 374-375.) Where the noticed matter is deposition testimony, the court may accept the truth of the facts stated in it only to the extent they are not and cannot be disputed. (Id. at p. 375; Cruz v. County of Los Angeles (1985) 173 Cal.App.3d 1131, 1134.) Likewise the existence of a government document is judicially noticeable, but the truth of the statements it contains and its proper interpretation are not, where those matters are reasonably disputable. (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 113-114.)

Exhibit A is offered to establish that Rescore, not Bernards,

retained the project architect and directed the design of The Rise Hollywood. (RJN at p. 2.) Plaintiff disputes that Bernards had no role in the design of, or in deviating from the design of, the driveway egress, and identifies that question as central to the Third Cause of Action. (Opp. at p. 11.) The fact Bernards asks the Court to take from the deposition is therefore actually disputed, and it cannot be established against Plaintiff by judicial notice on demurrer. The request as to Exhibit A is denied.

The request as to Exhibit B is granted as to the existence of the Certificate of Occupancy and the date it issued. (Evid. Code, § 452, subd. (c).) The Court does not notice the truth of any disputable inferences that may be drawn from it.

ANALYSIS

I. Statute of Limitations

Bernards demurs to the Third Cause of Action on the ground that it is barred by Code of Civil Procedure section 335.1, which prescribes a two-year period for an action for injury caused by the wrongful act or neglect of another. Bernards argues that Plaintiff did not name Bernards until the FAC was filed roughly thirty months after the collision, and that the relation back doctrine does not apply because Plaintiff never substituted Bernards for a fictitious defendant. (Demurrer at pp. 8-9; Reply at pp. 2-3.)

A demurrer on limitations grounds lies only where the untimeliness of the claim appears clearly and affirmatively from the face of the pleading and from matters properly noticed. Allegations showing that a claim might be barred do not suffice. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.)

“The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed.” (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176.) “A recognized exception to the general rule is the substitution under section 474 of a new defendant for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint. [Citations.] If the requirements of section 474 are satisfied, the amended complaint substituting a

new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed." (Ibid.)

Section 474 permits a plaintiff who is ignorant of a defendant's name to designate that defendant fictitiously and to amend once the true name is discovered. An amendment substituting a named defendant for a fictitious one relates back to the original complaint where the amended pleading rests on the same general set of facts and refers to the same accident and the same injuries. (*Smeltzley v. Nicholson Mfg. Co.* (1977) 18 Cal.3d 932, 936-938.) Relation back is available even where the amendment proceeds on a legal theory the original complaint did not assert. (*Id.* at p. 939.)

Here, the original Complaint pleaded its Third Cause of Action against the City "and DOES 51 THROUGH 100," and alleged that the fictitiously designated defendants constructed the roadway and premises and were responsible for the dangerous condition, including the line of sight of motorists exiting the premises. (Complaint, Third Cause of Action.) The FAC pleads its Third Cause of Action against Bernards "and DOES 51 THROUGH 60," drawn from that pool, and renumbers the claim against the City as the Fourth Cause of Action against Does 61 through 100. (FAC, ¶ 19; FAC, Fourth Cause of Action.) The FAC seeks recovery for the same collision and the same injuries alleged in the original Complaint. (FAC, ¶¶ 16, 24.)

Bernards's objection is that the FAC names Bernards as a defendant alongside Does 51 through 60 rather than reciting a formal substitution, so that Bernards is a newly named party to which relation back cannot apply. (Reply at pp. 2-3.) The Court agrees that because Plaintiff failed to properly substitute Bernards for a Doe defendant, relation back does not apply and the third cause of action appears facially untimely as to Bernards. Accordingly, the demurrer is sustained. However, California courts treat noncompliance with the party substitution requirements of section 474 as a procedural defect that can be cured, and have been lenient in permitting rectification. (*Woo*, supra 75 Cal.App.4th at p. 177.) Therefore, the Court proceeds with rest of the analysis to determine if it should grant leave to amend.

The remaining requirement for relation back is that Plaintiff have been genuinely ignorant of Bernards's identity, or of the facts giving rise to a claim against Bernards, when the original Complaint was filed.

A plaintiff is ignorant within the meaning of the statute if he lacks knowledge of a person's connection with his injuries, even where he knows that person's name. (*General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 593-594.) Nothing on the face of the FAC shows what Plaintiff knew in October 2024, and Bernards points to nothing in the pleading or in any properly noticed matter establishing that Plaintiff then knew of Bernards's connection to his injuries.

II. Sufficiency of the Negligence Allegations

Bernards separately demurs on the ground that the FAC fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

A. Completed and Accepted Work

Bernards argues that a contractor bears no liability for injuries occurring after the owner accepts the work. (Demurrer at pp. 9-10; Reply at pp. 3-4.) When a contractor completes work that the owner accepts, the contractor is not liable to third parties injured as a result of the condition of the work, even if the contractor was negligent in performing the contract, unless the defect was latent or concealed. (*Sanchez v. Swinerton & Walberg Co.* (1996) 47 Cal.App.4th 1461, 1466-1467.)

Here, the FAC alleges neither that Rescore accepted Bernards's work nor that the sight line condition Plaintiff describes would have been discovered by a reasonable inspection. (FAC, ¶¶ 20-23.) The Certificate of Occupancy shows that the certificate issued. It does not show acceptance by the owner, and it does not show that the alleged defect was patent. The defense does not appear on the face of the pleading.

B. Design and Construction

Bernards argues that the FAC alleges only that it submitted plans prepared by Rescore's architect, and that a contractor is not liable for an inadequacy in a design it was bound to follow. (Demurrer at p. 10; Reply at pp. 3-5.) The authority Bernards invokes holds that where a contractor performs in accordance with plans and specifications furnished by the owner that the

contractor is bound to follow, and the owner accepts the completed work, the contractor is not liable to a third person for injuries resulting from a structural defect, because the injury-causing defect is attributed to the plans rather than to the contractor's negligence. (*Barnthouse v. California Steel Bldgs. Co.* (1963) 215 Cal.App.2d 72.)

That rule turns on a factual predicate, that the work was in fact built in accordance with the owner's plans. *Barnthouse* framed the controlling question as whether the structure was constructed in conformity with the specifications, and resolved it only after trial, on review of the evidence. (*Ibid.*) The immunity reaches defects that trace to the design. It does not reach a contractor's own negligent workmanship, or a departure from the plans, because such a defect is the product of the contractor's conduct rather than the design it was furnished.

The FAC does not bring itself within the rule. It does not allege that Bernards built the egress in conformity with plans it was bound to follow. It alleges that Bernards negligently, carelessly, recklessly, or otherwise tortiously constructed and contributed to the creation of the premises and its vehicular egress in a manner that caused or permitted unsafe and dangerous conditions to exist, including inadequate sight lines for motorists exiting onto Fountain Avenue. (FAC, ¶ 22.) It further alleges that Bernards knew or should have known that its construction of the egress created a dangerous condition posing an unreasonable risk to motorists lawfully using Fountain Avenue. (FAC, ¶ 23.) Those allegations charge Bernards's own negligence in building the egress, not liability for merely transmitting a design prepared by others.

Whether the dangerous condition traces to the design Rescore's architect prepared or to Bernards's construction is the factual question *Barnthouse* itself treated as dispositive, and it cannot be resolved on the face of the pleading. The protection Bernards invokes is an affirmative defense (CACI No. 4511), and a defense defeats a claim on demurrer only where its factual predicates appear on the face of the complaint. Neither predicate appears here. The FAC does not concede that Bernards conformed to owner-furnished plans, or that the defect lies in the design rather than in the construction, and on demurrer its allegations of negligent construction are accepted as true.

Negligence may be pleaded generally. All that is required is that the complaint set forth the essential facts of the case with reasonable

precision and with sufficient particularity to acquaint the defendant with the nature, source, and extent of the cause of action. (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

C. Ownership, Possession, and
Control

Bernards argues in the alternative that premises liability requires that a defendant own, possess, or control the property, and that the FAC alleges none of the three as to Bernards. (Demurrer at p. 11; Reply at p. 4; Alcaraz v. Vece (1997) 14 Cal.4th 1149, 1162.) The Third Cause of Action is pleaded as negligence rather than premises liability, and it rests on Bernards's own conduct in constructing the egress rather than on any interest in the premises at the time of the collision.

Because the FAC otherwise states a cause of action for negligence, and the statute of limitations issue is curable, the Court sustains the Demurrer with leave to amend.

CONCLUSION

Bernards Builders, Inc.'s Demurrer to the Third Cause of Action of the First Amended Complaint is sustained. Plaintiff has twenty days leave to amend.